The deposit will be converted into postage due stamps, and the stamps canceled and given to you if no appeal is made. If appeal is made, action concerning the deposit will be deferred.

(e) *Revocation.* The approval may be revoked if the authorization was given to an organization or association which was not qualified or which becomes unqualified. The postmaster who approved the application will notify the organization of the pending cancellation of the authorization and of the reasons for the cancellation. The organization will be allowed 10 days within which to file a written statement why the authorization should not be canceled. When no answer is filed, the postmaster will cancel the authorization. If an answer is filed, decision will be made by the Bureau of Post Office Operations, Division of Mail Classification, whether the authorization shall be continued in effect. Notice of the decision will be given the organization through the postmaster.

d. Section 24.8 *Sealing* is amended to read as follows:

§ 24.8 *Sealing*—(a) *What may be sealed.* The following mailed at third class rates of postage may be sealed:

(1) Parcels.

(2) Self-mailers larger than 5 x 11½ inches.

(3) Envelopes larger than 5 x 11½ inches.

(4) Merchandise, books or catalogs in envelopes 5 x 11½ inches or smaller provided they are marked "Merchandise" or "Book" or "Catalog" in a prominent manner on the address side.

Except for items in subparagraph (4) of this paragraph, envelopes and self-mailers measuring 5 x 11½ inches or smaller, when sealed, are subject to the first-class rate.

(b) *Examination.* Third-class mail must be prepared so that it can be easily examined. Mailing of sealed articles under paragraph (a) of this section at the third-class rates of postage is deemed to be the consent of the sender to postal inspection of the contents. To assure that their parcels will not be opened for postal inspection, patrons should, in addition to paying the first-class rate of postage, plainly mark their parcels "First-Class" or with similar endorsement.

(c) *Penny-saver envelopes.* Envelopes having one small spot of gum to hold a loose flap are accepted as unsealed. The words "Pull Out for Postal Inspection" must be printed on, or adjacent to, the loose flap and must be entirely exposed when the envelope is ready for mailing. The closing outside flap that folds over the loose flap must not be gummed on the surface touching the loose flap.

e. In § 24.9 *Circulars addressed to APO's* insert the following after the second sentence: "(See Part 17 of this chapter.)".

(R. S. 161, 396, as amended; sec. 1, 25 Stat. 1, as amended, sec. 206 (a), 43 Stat. 1067, as amended, sec. 3, 65 Stat. 673; 5 U. S. C. 22, 369, 39 U. S. C. 235, 249, 290a-1)

PART 47—FORWARDING MAIL

In § 47.7 *Guarantee to pay forwarding postage* amend paragraph (b) to read as follows:

(b) The sender may guarantee payment of forwarding postage on third- or fourth-class mail by printing "Forwarding Postage Guaranteed" below his return address. On second-class mail the guarantee must be printed on the envelope or wrapper or on one of the outside covers of unwrapped copies and must be immediately preceded by the sender's name and address. Mail bearing this pledge is accepted with the understanding that the sender will pay both the forwarding and return postage if the mail is returned as undeliverable from the post office to which it is forwarded, or the return postage when it is returned as undeliverable from the post office of first address. Where an addressee has unqualifiedly refused to pay forwarding postage on other mail of the same class, the mail will not be forwarded even though it bears the sender's pledge guaranteeing forwarding postage, but it shall be treated the same as if it bore sender's pledge to pay return postage.

(R. S. 161, 396, as amended; sec. 1, 64 Stat. 210; 5 U. S. C. 22, 369, 39 U. S. C. 278a)

[SEAL] ABE MCGREGOR GOFF,
General Counsel.

[F. R. Doc. 57-5211; Filed, June 26, 1957; 8:46 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1437]

[70105]

CALIFORNIA

POWER SITE RESTORATION NO. 522, PARTIALLY REVOKING EXECUTIVE ORDERS OF NOVEMBER 25, 1911, OCTOBER 18, 1912, AND MAY 27, 1913, WHICH ESTABLISHED POWER SITE RESERVES NOS. 232, 293, AND 364, RESPECTIVELY

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141) and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive orders of November 25, 1911, October 18, 1912, and May 27, 1913, creating Power Site Reserves Nos. 232, 293, and 364, respectively, are hereby revoked so far as they affect the following-described lands:

(a) Executive order of November 25, 1911:

(Power Site Reserve No. 232)

MOUNT DIABLO MERIDIAN

T. 33 N., R. 8 W.,
Sec. 18, S½SW¼NW¼SE¼.

The area described contains 5 acres.

(b) Executive order of October 18, 1912:

(Power Site Reserve No. 293)

MOUNT DIABLO MERIDIAN

T. 6 S., R. 36 E.,
Sec. 1, S½SW¼NE¼ and S½SE¼NW¼.

The areas described aggregate 40 acres.

(c) Executive order of May 27, 1913:

(Power Site Reserve No. 364)

T. 31 N., R. 1 E.,
Sec. 24, S½SE¼.

The area described contains 80 acres.

2. The lands are located in Trinity, Shasta, and Mono Counties, California. The lands in T. 31 N., R. 1 E., are timber and grazing lands. The land in T. 33 N., R. 8 W., is located near the Town of Lewiston. The tract is too rough for cultivation. The remaining lands are located east of the Inyo National Forest.

3. The S½SE¼, sec. 24, T. 31 N., R. 1 E., has been classified for disposal under the act of June 14, 1926 (44 Stat. 741) as amended by the act of June 4, 1954 (68 Stat. 173; 43 U. S. C. 869).

4. No application for the restored lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of application, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m., on July 27, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m., on October 26, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m., on October 26, 1957,

will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

6. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

7. The restored lands shall be subject, until 10:00 a. m., on October 26, 1957, to application by the State of California, under any statute or regulation applicable thereto, for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways pursuant to section 24 of the Federal Power Act of June 20, 1920 (41 Stat. 1075; 16 U. S. C. 818) as amended.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Los Angeles or Sacramento, California, depending upon the district where the lands are located.

HATFIELD CHILSON,
Under Secretary of the Interior.

JUNE 21, 1957.

[F. R. Doc. 57-5203; Filed, June 26, 1957; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 21-6; FCC 57-665]

PART 21—DOMESTIC PUBLIC RADIO SERVICES (OTHER THAN MARITIME MOBILE)

TRANSMITTER CONSTRUCTION AND INSTALLATION

At a session of the Federal Communications Commission held at its offices in Washington, D. C. on the 21st day of June 1957;

The Commission, having under consideration the petition of Lenkurt Electric Company, filed May 6, 1957, the petition of the Radio-Electronics-Television Manufacturers Association, filed May 10, 1957, and the petitions of American Telephone and Telegraph Company and United States Independent Telephone Association, filed June 17, 1957, requesting deletion of § 21.118 (g) of Part 21 of the rules; and

It appearing that, by Order dated November 14, 1956, the Commission stayed the effective date of § 21.118 (g) until July 1, 1957, to allow the radio industry time to determine practicable means of achieving the intended objectives of this section and to make recommendations relative thereto to the Commission; and

It further appearing that petitioners have completed their study and made recommendations to the Commission in the aforementioned petitions wherein persuasive technical and economic reasons are advanced in support of their requests for deletion of § 21.118 (g); and

It further appearing that the equipment necessary for compliance with § 21.118 (g) is generally not available; and

It further appearing that the rule change specified herein relieves restrictions and that proposed rule-making proceedings do not appear necessary or desirable or in the public interest;

It is ordered, That, § 21.118 (g) of Part 21 of the Commission's rules is hereby deleted and reference thereto is accordingly deleted from § 21.205 (1) effective June 30, 1957.

The action taken herein is pursuant to the authority contained in section 4 (i) and 303 of the Communications Act of 1934, as amended, and sections 4 (a) and (c) of the Administrative Procedure Act.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: June 24, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-5224; Filed, June 26, 1957; 8:48 a. m.]

PROPOSED RULE MAKING

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Part 3]

[Docket No. 12065; FCC 57-663]

TABLE OF ASSIGNMENTS, TELEVISION BROADCAST STATIONS

LAFAYETTE-TERRE HAUTE, IND.

1. Notice is hereby given of rule making in the above-entitled matter.

2. The Commission has before it for consideration a petition, filed April 1, 1957 by Lafayette Brodcasting, Inc., Lafayette, Indiana, in the Springfield, Illinois-St. Louis, Missouri, rule making proceeding (Docket No. 11747) for partial reconsideration of the Commission's Report and Order, released March 1, 1957 in the said proceedings, requesting amendment of § 3.606, Table of Assignments, Television Broadcast Stations so as to shift Channel 10 from Terre Haute, Indiana, to Lafayette, Indiana.

3. In support of its proposal, Lafayette Broadcasting asserts that the assignment of Channel 10 to Lafayette can be made in full compliance with the mileage separation requirements of the Commission's rules; that Terre Haute has one operating VHF station (WTHI-TV) on Channel 10, and has, as a result of the Springfield-St. Louis proceeding, recently been allocated a second VHF channel (Channel 2); that Lafayette has no local VHF assignments; that Lafayette Broadcasting operates UHF station WFAM-TV in Lafayette, which is confronted with severe competition from 4 VHF stations in Indianapolis and other nearby cities; that only about 55 percent of the receivers in the Lafayette area are equipped to receive UHF; that although WFAM-TV has increased its power, the station does not have adequate coverage because of rugged terrain "and other factors"; that although Terre Haute receives 3 VHF signals from stations in the Indianapolis area, the local Terre Haute station (WTHI-TV) operates on a VHF channel and can compete with the outside VHF stations; and that Terre Haute and Lafayette should each have one VHF in preference to the allocation of 2 VHF stations to Terre Haute and none to Lafayette. Lafayette Broadcasting notes that WTHI-TV has already filed an application (File No. BPCT-2293) to shift its operation from Channel 10 to Channel 2, which application, if granted, would release Channel 10 for reassignment to Lafayette.

4. On April 19, 1957, Wabash Valley Broadcasting Corporation, licensee of Station WTHI-TV on Channel 10 in Terre Haute, filed a statement with respect to the Lafayette Broadcasting petition, stating that it opposes any procedural device which would deprive it of Channel 10 prior to its receiving a valid final grant for Channel 2, and that it takes no position on the merits of the rule making proposal to shift Channel 10 to Lafayette.

5. Simultaneously with the issuance of this notice of rule making the Commission is releasing a memorandum opinion and order in the Springfield-St. Louis case (Docket No. 11747) denying various petitions for reconsideration of the Commission's Report and Order in that proceeding and reaffirming its decision to delete Channel 2 from Springfield and to assign that channel to both St. Louis and Terre Haute. The memorandum opinion and order concludes, also, that the proposal of Lafayette Broadcasting, to shift Channel 10 from Terre Haute to Lafayette warrants the institution of a rule making proceeding. The Commission is instituting rule making on the proposal in order that interested parties may submit their views and relevant data.

6. Authority for the adoption of the amendment proposed herein is contained in sections 4 (i), 301, 303 (c), (d), (f), and (r) and 307 (b) and 316 of the Communications Act of 1934, as amended.

7. Wabash Valley Broadcasting Corporation presently operates a television station on Channel 10 at Terre Haute, Indiana, and the rule making proposed herein would delete this assignment. In the event the Commission decides to amend the rules as proposed, the Commission will determine what further steps should be taken in the light of this outstanding authorization.

8. Any interested party who is of the view that the proposed amendment should not be adopted, or should not be adopted in the form set forth herein,